IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR.JUSTICE K.VINOD CHANDRAN

WEDNESDAY,THE 28TH DAY OF NOVEMBER 2018 / 7TH AGRAHAYANA, 1940

MACA.No. 60 of 2012

AGAINST THE AWARD IN OPMV 1001/2004 of &MACT,TSR DATED 31-05-2011

APPELLANT/S:

1 SARALA,AGED 1 YEARS
W/O.RADHAKRISHNAN.

2 LATHA,AGED 1 YEARS
W/O.BALAKRISHNAN.

3 BABURAJ, S/O.RADHAKRISHNAN.

4 RAGHUNATH, AGED 1 YEARS
S/O.RADHAKRISHNAN. ALL ARE RESIDING AT KRISHNENDHU, KURUVETTI PARAMBU, APPAS ROAD, GURUVAYOOR, THRISSUR DISTRICT.

BY ADVS.
SRI.T.C.SURESH MENON
SRI.A.R.NIMOD
SRI.JIBU P THOMAS
SRI.P.S.APPU

RESPONDENT/S:

1 K.P.PRASAD,
S/O.K.V.PUSHPAN,RESIDING AT KAURMANPARAMBIL HOUSE, P.O.MUTHUVARA, THRISSUR DISTRICT- 680555.

2 VIJAYAN, S/O.THANKAPPAN,RESIDING AT KOKKATTUPARAMBIL HOUSE,KANIPPAYUR,KUNNAMKULAM,THRISSUR-680503.

3 THE NEW INDIA ASSURANCE COMPANY LTD
EAST COAST CHAMBERS,FIRST FLOOR,92,G.N.CHETTY ROAD, T.NAGAR,CHENNAI-17.

BY ADVS.
SMT.P.K.SANTHAMMA, SC
SRI.A.A.ZIYAD RAHMAN

THIS MOTOR ACCIDENT CLAIMS APPEAL HAVING BEEN FINALLY HEARD ON 28.11.2018, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

JUDGMENT

Since notice was not served on certain respondents, this Court had directed service to be taken out by paper publication. The paper publication has been produced, which shows the date of appearance on 27.11.2018. None appears for respondents 1 and 2, who are respectively the owner and driver of the vehicle, who have been mulcted with the liability and the Insurance Company granted the right to recover the compensation awarded, after paying it to the claimants. In such circumstances, the respondents 1 and 2 are set *ex-parte*.

2. The accident occurred on 28.02.2004 at about 3.45 p.m. The deceased was the son of the first appellant and the brother of the other appellants and was aged 30 years at the time of the accident and he succumbed to the injuries on the very same day. A monthly income of Rs.10,000/- was asserted by the claimants for the deceased,

when he was alive. The Tribunal adopted Rs.3,050/-. The deceased was asserted to be a musician and a performer, who was also employed as a daily wager by the Guruvayur Devaswom Board. Ext.A9 was the salary certificate, which showed a basic salary of Rs.3,050/- per month, proportionately on the days, in which the deceased was engaged. The Tribunal adopted only the income as shown in the certificate. The certificate indicates that Rs.3,050/- is the basic pay of the post, in which the deceased was appointed as a daily wager for 15 days in every month. It is also stated that, proportionately the deceased was paid for the period in which he has worked, meaning 15 days in a month. Considering the fact that there is an addition of D.A also, this Court accepts the monthly income taken as Rs.3,050/- by the Tribunal. Considering the fact that the petitioner is regularly employed for 15 days in a month and he has also scope for employment and public

performances in the other 15 days, this Court is of the opinion that there should be an enhancement granted in the income.

3. Relying on the binding precedent of the Hon'ble Supreme Court in ***Ramachandrappa*** v. ***Royal Sundaram Alliance Insurance Company Limited [(2011) 13 SCC 236]***, this Court fixes the monthly income of the deceased as Rs.4,500/-. To that 40% has to be added to arrive at the income for future prospects; which is Rs.6,300/-. Half of it has to be reduced for his own expenses. Hence, the loss of dependency would be Rs.6,42,600/- [3150x17x12]. There is also scope for granting compensation for filal consortium to the parents, the father having died in the course of the proceedings as has been found in ***Magma General Insurance Company Ltd.*** v. ***Nanu Ram @ Ram and Others [CDJ 2018 SC 958]***. The following enhancement is also granted under the various heads:-

Sl. No.	Head of Claim	Amount awarded by the Tribunal `	Total amount enhanced in appeal `
1	Transportation	5000	5000
2	Funeral expenses	---	15000
3	Damage to clothing	---	500
4	Pain and suffering	6000	6000
5	Love and affection	10000	50000
6	Loss of estate	10000	15000
7	Filial Consortium	NIL	40000
8	Loss of dependency	91500	642600 [3150x17x12]
9	Cost of paper publication	---	9760
	Total	**122500**	**783860**

4. The Insurance Company would have the right to recover the amount after payment from the 1st respondent. The appellant had taken out paper publication, the cost of which comes to Rs.9760/-,which will also be the liability of the registered owner, which will be indemnified by the Insurance Company and the same reimbursed within two weeks without any interest. On the charges for paper publication the insurance company will be

entitled to recover from the owner of the vehicle with 7% interest from the date on which it is paid to the claimants.

5. The amounts awarded as above, after deducting what has already been paid, shall be paid within two months from the date of receipt of a certified copy of this judgment with interest from the date of application and costs, if any, as awarded by the Tribunal. The appellants shall produce a copy of a canceled cheque of the bank account in their name with copy of AADHAR or acceptable identification, before the Tribunal, along with authorisation from all the claimants. within one month, with copy to the Insurance Company. The Insurance Company shall credit the amount through NEFT mode to the said account, failing which, the applicant can approach the Tribunal. If the details of bank account is not filed then the Insurance Company shall deposit the amounts.

The appeal would stand allowed. Parties are left to suffer their respective costs.

Sd/-

K.VINOD CHANDRAN

JUDGE

SB/29/11/2018